

		Moving parties, however, do not show Lynch’s ability to comply with the court’s 2/20/26 sanctions order. In fact, Lynch shows he is unable to pay the sanctions order. (See Lynch Decl. ¶¶ 3-11, Exh. 3 [re inability to work and income insufficient to cover monthly costs].) As such, moving parties have not shown willful disobedience, a prerequisite for a contempt order. Moreover, a sanctions order is enforceable in the same was as a “money judgment”. As such, contempt does not appear to be appropriate here. In sum, the motion is DENIED. Moving parties to give notice.
10	Torres vs. Northgate Gonzalez Markets, Inc	<u>Motion for Spoliation Sanctions</u> The court DENIES Plaintiff JAVIER NAVARRO TORRES’s Motion for Spoilation Sanctions against Defendant NORTHGATE GONZALEZ, LLC. <i>Sanctions for Spoilation of Evidence</i> The court may impose sanctions against anyone engaging in conduct that is a misuse of the discovery process. (See Code Civ. Proc., § 2023.030.) Sanctionable discovery abuses include, among other things, spoliation of evidence. (<i>Dept. of Forestry & Fire Protection v. Howell</i> (2017) 18 Cal.App.5th 154, 191, disapproved of on other ground by <i>Presbyterian Camp & Conference Centers, Inc. v. Superior Court</i> (2021) 12 Cal.5th 493.) Spoliation of evidence “is defined as the destruction or alteration of relevant evidence or the failure to preserve evidence for another party’s use in pending or future litigation.” (<i>Victor Valley Union High School District v. Superior Court</i> (2023) 91 Cal.App.5th 1121, 1139 [citing other cases].) “[T]he party moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party’s ability to establish an essential element of his claim or

defense.” (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1227 [citing *National Council Against Health Fraud, Inc. v. King Bio Pharmaceuticals, Inc.* (2003) 107 Cal.App.4th 1336, 1346-1347 and cases cited therein].)

Importantly, the court must tailor the sanction for such conduct to “fit the crime.” (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1293.) The court cannot impose sanctions as punishment; the choice of sanctions should not give the moving party more than it would have gotten had the discovery been responded to. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; *Caryl Richards, Inc. v. Superior Court* (1961) 188 Cal.App.2d 300, 303.)

Monetary sanctions or evidentiary sanctions may be imposed for misuse of the discovery process. (See, e.g., *Kwan Software Engineering, Inc. v. Henning* (2020) 58 Cal.App.5th 57, 76 [regarding monetary sanctions in the form of attorneys fees based on a party and the party’s counsel’s egregious litigation conduct, including destroying and hiding evidence after communication to “get rid of certain” evidence]; *Victor Valley Union High School Dist.* (2023) 91 Cal.App.5th 1121, 1139.)

Terminating sanctions are also available but only where a party engages in egregious and deliberate misconduct. (*Dept. of Forestry*, 18 Cal.App.5th at 191-198 [finding the court did not abuse its discretion in imposing terminating sanctions where substantial evidence supported the department’s willful, repeated and egregious misuses of the discovery process, including presenting false, misleading, or evasive discovery responses, presenting false and evasive deposition testimony, engaging in spoliation of field notes despite probable litigation], disapproved of on other ground by *Presbyterian Camp & Conference Centers, Inc. v. Superior Court* (2021) 12 Cal.5th 493.)

In *Williams v. Russ*, the plaintiff sued his former attorney for legal malpractice. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1218.) While the action was pending, the plaintiff obtained his entire client file in the underlying litigation. (*Ibid.*) Plaintiff’s current attorney reviewed the